STATE OF SOUTH DAKOTA
DEPARTMENT OF HEALTH

BOARD OF MEDICAL AND OSTEOPATHIC EXAMINERS

IN THE MATTER OF: ERIC C. WELLING, MD	))))	No. 23-115 ORDER FOR SUMMARY SUSPENSION

The above captioned matter came before the Board of Medical and Osteopathic Examiners (the Board) on Wednesday, January 11, 2023. Dr. Eric. C. Welling appear personally but without the assistance of counsel. Board staff was present and represented by Assistant Attorney General Caroline Srstka. The Board having reviewed the materials on file in this matter, and being otherwise fully informed of the facts and issues pertinent therein, issues the following:

The Board hereby

FINDS that the summary suspension hearing was initiation by a Petition of the Board's Executive Director filed on January 6, 2023, requesting that the Board summarily suspend the South Dakota medical license of Dr. Welling. Said Petition was supported by an Affidavit and attached exhibits submitted by the Board's investigator, Justin Reinfeld. The Board further

FINDS that on Dr. Welling received his South Dakota medical license on February 28, 2022. Dr. Welling's medical licenses was issued through the licensing provisions of the Interstate Medical Licensure Compact (IMLC) as adopted through the enactment of SDCL 36-4-44. The Board further

FINDS that the state of Utah is Dr. Welling's state of principle licensure for purposes of the IMLC. On February 9, 2022, the Utah Physician & Surgeon Licensing Board issued a Letter of Qualification for licensure in the IMLC to Dr. Welling. The Board further

FINDS the Davis Hospital & Medical Center in Layton, Utah, suspended the clinical privileges of Dr. Welling, effective September 23, 2021, for health and safety concerns. Dr. Welling was requested to obtain a cognitive assessment after reporting that underlying deficits could have been the cause of his alleged substandard performance. The Board further

FINDS that on October 25, 2021, the Wyoming Board of Medicine received a National Practitioner Data Bank (NPDB) report regarding the suspension of Dr. Welling's privileges by the Davis Hospital & Medical Center. The Wyoming Board subsequently opened a complaint on October 27, 2021, against Dr. Welling concerning the NPDB report. The Board further

FINDS that on November 12, 2021, Dr. Welling responded to the Wyoming Board verifying that his privileges had been suspended at Davis Hospital and reporting that Davis Hospital had required an evaluation at Acumen Assessments for neurocognitive testing. The Board further

FINDS that on December 15, 2021, the Wyoming Board received a copy of the Acumen Assessment report concerning Dr. Welling. Acumen indicated Dr. Welling would be able to skillfully practice only if he followed the recommendations included in the report. The Board further

FINDS that, as noted above, Dr. Welling applied for medical licensure in the State of South Dakota on February 28, 2022, through the provisions of the IMLC. When asked on his S.D. application whether it was true that he had not experienced an adverse action, Dr. Welling indicated this statement was true. Dr. Welling, did however, subsequently indicate that he had been the subject of a complaint, investigation, or proceeding and disclosed the suspension by Davis Hospital and the Acumen Assessments neurocognitive evaluation. The Board further

FINDS that Dr. Welling was asked on his S.D. application whether his licensure was subject to any complaint, investigation, or proceeding – Dr. Welling answered that it was not. Dr. Welling failed to disclose the complaint opened against him by the Wyoming Board of Medicine in October 2021. The Board further

FINDS that Dr. Welling was asked on his IMLC application whether he was under investigation by a licensing agency in any state. Dr. Welling indicated that he was not, failing to disclose the October 2021 Wyoming Board complaint. The Board further

FINDS that on July 22, 2022, the Wyoming Board ordered that Dr. Welling undergo an alcohol, substance, and mental health examination. Dr. Welling failed to comply with this order. The Board further

FINDS that SDCL 36-4-30.1 requires an individual licensed by the Board to report "actions affecting privileges to practice" withing 30 days of the date of the action. The Board further

FINDS that Dr. Welling did not report to the Board, as required by SDCL 36-4-30.1, the Wyoming Board's July 2022 order. The Board further

FINDS that on November 4, 2022, the Wyoming Board of Medicine summarily suspended Dr. Welling's license to practice medicine in the state of Wyoming for Dr. Welling's failure to comply with the Wyoming Board's July 22 order. That suspension remains in effect. The Board further

FINDS that on November 7, 2022, Board staff received a report that Dr. Welling's Wyoming license had been summarily suspended. Dr. Welling was placed under investigation by Board staff on November 16, 2022. The Board further

FINDS that on December 20, 2022, Board staff received notice from the IMLC that Dr. Welling's license was to be placed in summary suspension as per the requirements of the Compact as adopted by all member states. The summary suspension was to run for ninety days from the entry on November 4, 2022, of the Wyoming Board's order. The Board further

FINDS that SDCL 36-4-44, § 10(d) requires an automatic summary suspension of any license issued through the IMLC when such license is revoked, surrendered, or suspended in any other IMLC member state. The Board further

FINDS that the Board is the statutory authority tasked with the regulation of the practice of medicine in South Dakota and is authorized by the provisions of SDCL 36-4-29.1 to summarily suspend a South Dakota medical license if necessary to ensure the protection of the public health, safety, or welfare. The Board is also

granted the authority to summarily suspend a license if said license was improperly obtained. The Board further

FINDS that the alleged actions of Dr. Welling require emergency action to ensure the protection of the public health, safety, or welfare in South Dakota. The alleged actions of Dr. Welling indicate he may have improperly obtained his South Dakota medical license through his failure to properly disclose information on his South Dakota medical licensure application. Further, state law requires the suspension of an IMLC license when that licensee is subject to suspension in any other IMLC member state.

Based upon the foregoing, it is hereby

ORDERED that the South Dakota medical license of Dr. Eric C. Welling is SUMMARILY SUSPENDED. It is further

ORDERED that a contested hearing be held in this matter before a hearing officer appointed by the Board pursuant to ARSD § 20:78:05:04. This contested hearing is to be promptly instituted to determine whether Dr. Welling's medical license should be suspended, revoked, or limited in some manner. The contested hearing will be conducted under the requirements of SDCL chs. 1-26, 36-1C, and 36-4. At the conclusion of the hearing, the hearing officer appointed by the Board shall enter findings of fact, conclusions of law, and proposed recommendation for the Board's consideration and final action. It is further

ORDERED that this Summary Suspension is effective immediately upon execution by the undersigned officer of the Board. It is further

ORDERED that this Order is a public record of the Board and the State of South Dakota and shall be published on the Board's website and reported as necessary to the national practitioner data bank and all other entities deemed appropriate by the Board in compliance with State and Federal law

Dated this 11th day January, 2023

BOARD OF MEDICAL AND OSTEOPATHIC EXAMINERS

By: _____

Philip Meyer, DO
President

STATE OF SOUTH DAKOTA
MINNEHAHA COUNTY } S.S.

I hereby certify that the foregoing instrument is a true and correct copy of the original as the same appears on the record in my office.

Executive Secretary
By MBH by JRR
Date 1/11/23